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Loudoun County Board of Supervisors, Public Hearing, Wednesday, September 10, 2025

Date Wednesday, September 10, 2025
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 1h 55m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8015>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8015>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:05:45] coming he's coming am i on okay good evening i call to order the september 10th 2025 loudon county board of supervisors public hearing this room has a hearing loop excuse me if you need hearing assistance switch on your hearing aids to telecoil mode if you need a headset we have those available as well please see the clerk to request one as a reminder to all members of the public addressing the board this evening you may only register to speak on matters that have been

[00:06:19] advertised for this public hearing. Due to the broadcast delay, any members of the public who are not in the boardroom wishing to address the board on items 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, and 15, which are on the consolidated hearing agenda, please call the number scrolling across your screen at this time. All members of the public who have registered to speak will be allotted two and a half minutes. If you are in the boardroom, we ask that when your name is called, come to the podium and state your name for the record the timer on the podium will indicate

[00:06:54] your remaining time when your time has expired please yield the floor to the next speaker we do have a number of items on consolidated tonight and you may not be called in order of the items on the agenda so if you would like to state which item you are speaking on during the consolidated agenda i highly recommend it if you are providing your comments via phone i ask that you use a stopwatch to track

your time i will monitor your time in the boardroom as well and notify you when your time has expired when taking public input for items i will first ask if there's

[00:07:31] anyone in the boardroom wishing to speak and then i will go to the moderator who is anthony powell anthony can you hear me i can hear you loud and clear thank you and ask if there are any speakers via online please note that there is a slight delay between the broadcast and the boardroom pursuant to virginia code 2.2-3708.3 and the board's rules of order vice chair turner has requested to participate in this meeting by electronic communication a physical quorum of the board of supervisors is present in the boardroom and the board has made arrangements

[00:08:08] for the voice of vice chair turner to be heard by all persons in the boardroom excuse me vice Vice Chair Turner has made this request within the required time frame, and the county attorney determined that his request meets the qualifications to participate remotely.

[00:08:24] The board will record in its minutes that Vice Chair Turner participated remotely from Denver, Colorado, because of a personal matter. Vice Chair Turner, can you hear me? I can hear you just fine. Thank you, Madam Chair. Okay, great. The board will hear the following items as a consolidated hearing.

[00:08:44] As a reminder, the items are being consolidated because there are no outstanding issues, and staff has recommended approval, and the applicant has waived their presentation time, and no public speakers registered in advance to speak to the board.

[00:09:03] These items are, item number one, proposed conveyance of county property, conveyance of easement within Luckett's Community Park to the Loudoun County Sanitation Authority doing business as Loudoun Water. Item two, proposed assignment of the county easements to Loudoun County Sanitation Authority doing business as Loudoun Water.

[00:09:21] Item three, resolution approving the public use and necessity of acquiring certain real property and authorizing the acquisition by eminent domain, Evergreen Mills Road realignment at Reservoir and Watson Roads. Item four, amendments to Chapter 1020 of the codified ordinances of Loudoun County naming of streets.

[00:09:44] Item number five, A-Legy 2025-0001, review and renewal, modification or termination of the Chrysalis Vineyard and Locksley Estate Agricultural and Forestal District. Item six, A-Legy 2025-0005, review and renewal, modification or termination of the new Upperville Agricultural and Forestal District.

[00:10:09] Item number seven, A-Legy 2025-0006, renew and renewal modification or termination of the new Aldi Agricultural and Forestal District. Item eight, A-Legy 2025-0002, review and renewal modification or termination of the Hughesville Agricultural and Forestal District.

[00:10:33] I'm sensing a theme here. Item number nine, Allegi 2025-0003, review and renewal, modification or termination of the new Mount Gilead Agricultural and Forestal District. Item number 10, Allegi 2025-0004, review and renewal, modification or termination of the new Rockland Agricultural and Forestal District, Catoclin.

[00:11:04] item number 11 cedar lake restaurant with drive-through facilities specs 2024-0016 item number 12 leggi 2024-0048 loudon tech center baps zmap 2024-0016 and lastly item 15 cpam 2022-0001 st louis village plan are there any members of the public in the boardroom tonight wishing to speak to the board regarding a consolidated hearing item?

[00:11:39] I'm pretty sure the answer is yes, and I need some blue sheet. Thank you, thank you, thank you. Oh, okay, I do have the items on here. Moderator, are there any speakers on the phone wishing to speak regarding consolidated hearing items? I'll take that as a no, or he'll let me know.

[00:12:02] Okay. There is one person on the line. Okay, do I have a blue sheet for someone who's on the line? No. We don't. Okay, why don't we go ahead and do that person first? Otherwise, I'll forget. Hello. My name is Allison Marhoff.

[00:12:28] Go ahead. Thank you. I'm calling in to talk about Megan and Pablo and the case that's in front of you for the dog home away from home in the boarding facility. Ma'am, hang on just a second. I'm sorry. That item is not unconsolidated.

[00:12:48] So we'll be doing that after we do our consolidated agenda. Sorry about that. That's okay. Thank you. Okay. All right. So then we'll start with Samantha Wall, who will be followed by Nancy Missner. Please tell me if I pronounce that incorrectly.

[00:13:15] And then Joseph Ville. Thank you. We'll skip the 13s for now. So now we will have Samantha Wall, followed by Jennifer Imhoff, followed by Madeline Skinner. Go ahead.

[00:13:35] Thank you for letting me have my full time. And thank you for letting me speak. Respected friends, I shall make no apology for addressing thee in times like these when every local man should do his duty to her government. There should be no adhesion to forums for forum's sake. That is this gentleman's words, Yardley Taylor.

[00:13:52] I am a Loudon resident. I live in Round Hill, so Mr. Kirshner, you're my representative. And I am an amateur historian. I'm a full-time mom, and standing here doing this is kind of my recreation today. It's kind of fun. My heart's going. It's like my cardio.

[00:14:09] And the reason I'm here is because of item 4, chapter 1020, the renaming of streets. And as Yardley would call it, this is in regards to Confederate and secession names. That's what he would have said. In the letter that I just read, this was a letter that Yardley Taylor wrote to this gentleman, the governor of Virginia at the time, Pierpont.

[00:14:32] And in which case, he's basically making a statement of how the United States should continue, Virginia in particular, following the Civil War, and these ideas of bringing us together, united. I was not born here, but I was born in 1983, which is the year that geologists found the mineral in Goose Creek Quarry called laudanite. So I won't do the math for you of how old I am, but I am the age of how long laudanite has been known as a mineral. It's very exciting. It's very microscopic, so you can't get a sample, but the end of laudanite is unite. I am an artist, and I made these road

[00:15:09] maps um not for this project i just love maps this is if anyone knows um loudon or this is a lovetsville town square it's actually an oval this one is what is on google maps elizabeth mills but is being renamed to basil newman and the reason i'm here is that as a historian i went to elizabeth mills to research the locks and i was very excited to learn about basil newman and I was very disappointed in the Basil Newman facility and some of you received my call some of you didn't I've spoken to many officials about this but in the end I simply want to say that I

[00:15:48] think that what we're doing is wonderful but when we take away we have to build back and what I intend to do is have every library in the county have the essence of a people volume one the essence

of a people volume two the african-american story as told by the friends of the Bosch library Black History Committee. So I just wanted to put that out there and you'll see me in a couple more weeks. So thank you. Thank you very much, Ms. Wall. Jennifer Imhoff speaking on item number 15.

[00:16:20] Hello. Thank you for your time today. Jen Imhoff talking about St. Louis Village. I'm a native Virginian here, probably one of a rarity. Probably not many people are from native Virginians, but I am. And I have lived in St. Louis Village for over 19 years.

[00:16:44] The St. Louis Village Plan. I missed the last meeting. I do appreciate, Laura, your efforts. I understood that it was actually one of the most productive and fruitful meetings that have occurred, that we felt heard for a change, because that's one of the big issues, is that we feel like our public servants are not listening to us. So we felt heard this time.

[00:17:07] Thank you very much for that. We are supportive of the St. Louis Village Plan as proposed with some caveats and provisions. The first is we want to address the zoning that we've been promised in the village. That's been ongoing for about seven years.

[00:17:23] Okay, we're waiting on that. We don't want any commercial spaces in the village. This is a historic village, okay, to Loudoun County. No housing developments. We fought that tooth and nail. got Mojax booted out of there we want to continue that we don't want anybody else coming in and we do not want the community water which we that's I think already been addressed and we do appreciate you understanding that and working for the median income to support the people that can't support or afford wells but they also we want to make sure that it when when the county takes over

[00:18:03] the park and this is really really important or takes over excuse me the land from from coons that it becomes a passive park okay that is really critical to survival of this village um overall concerns are we don't want this part of loudon county western loudon county to look like eastern loudon county which is fraught with data centers right so we want to keep it we want to preserve what traditional loudon county is and right now we don't feel heard about that so approving the village plan with these provisions would be optimal and we

[00:18:40] we really would appreciate you listening to us on this and and ensuring that we don't become a concrete block thank you very much your time thank you and lastly we have Madeline Skinner also on number 15 good evening supervisors I'm Madeline Skinner here tonight to speak on the st. Louis Mall area plan mainly the process in the hope that there will be lessons learned as we move forward to conducting the next round of the village small area plans. I was honored to be a

[00:19:16] member of the St. Louis Task Force and work along St. Louis residents. I learned so much about the history of the village. However, after spending years as part of this, it was unfortunate that task force members were not asked to continue to participate as the design cabinet took over and also not being included in the community meeting as the one that was held on August 25th. I found out about it about 20 minutes before the meeting was starting started um as a task force member i think we should have been invited while some of the residents dropped out from the task force and may not have wanted to continue we all should have been given the opportunity to do so

[00:19:51] i worry about the tasks that need to be completed in st louis will there be active involvement by the residents has their frustration level reached a point where they have thrown up their hands and walked away i guess that's yet to be seen i said multiple times during this process that the residents needed

to form a citizens group so they could continue to participate in tasks impacting the future of their village. I'm not aware of that happening. Who will work on these tasks? How much involvement will there be by the residents? Moving forward, this is more of a sideline, the RFQ is on the shortlist stage and interviews with consulting firms will begin soon on the village small area plans. I hope that Lockett's, Willisville,

[00:20:31] and Paonian Springs will have a good and productive experience. I also believe that any long-term decisions about Route 15 should be put on hold so that the small area plan can be completed first. What a great incentive to keep this plan on the fast track. Villages have waited 40 years to have these village plans worked on. Route 15 can wait just a little bit longer.

[00:20:54] The future of Lockett's is at stake. Some may not care, but many do. Like the community meeting going on in Lockett's tonight, which I'm double-booked tonight, I don't think I'll make it, for the residents to express their opinions in work sessions. Also, Payone Inn Springs should also be afforded a delay in continuing any action on the water issue until their small area plan is completed. I hope we have swift success as we move forward with Lockett's, Payone Inn Springs, and Willisville and the many to follow thank you thank you miss Skinner okay let's try this one more time are

[00:21:30] there any other speakers on the consolidated agenda either on the phone or in the audience that have signed up we're good okay seeing none I do close the public hearing for the consolidated agenda we will have motions on each of those items and I'm sure some supervisors will want to speak to some of the comments that were made this evening colleagues and my friends in the audience I do want to apologize I was a little bit distracted as we came on to

[00:22:09] the days tonight so we need to back up for just a moment I'm sure we've all heard the news about the tragic and horrific, basically, assassination today of Mr. Charlie Kirk in Utah. And so I had intended to open our public hearing tonight with a moment of silence for Mr. Kirk and all victims of gun violence. So if you would join me for a moment

[00:22:36] of silence, I would appreciate it. Thank you. And the other thing we forgot was the Pledge of Allegiance. So please join me, colleagues.

[00:22:56] To the republic for which it stands, one nation, under God, indivisible, liberty, and justice. Thank you so much for your grace on that, on those two items. Okay, we will now start with motions from the consolidated agenda. Motion number one, I will go to my colleague from Catocin. Item number one.

[00:23:26] Thank you, Madam. Thank you, Madam Chair. I move the Board of Supervisors approve motion 2B for the approval of the proposed conveyance is provided in the September 10th, 2025 public hearing item number one staff report. Motion made by Supervisor Kirshner, seconded by Supervisor Umstead. Do you have any opening? No, no. Okay. Any other comments, colleagues? Okay. Me neither.

[00:23:51] Any closing? Okay. All those in favor, please say aye. Aye. And that motion passes 8-0-1 with chair randall off the dais this evening item number two i will go to my colleague from sterling i move that the board of supervisors approve motion to be for approval of the proposed assignment as provided in september 10th 2025 public hearing items number two staff report

[00:24:22] second motion made by supervisor sayings seconded by supervisor glass any comments no okay all those in favor aye any opposed that's right so that motion will pass 7011 no 702 with mr letourneau and ms randall off the dais item number three i will go to my colleague from little river you chair brussman i move that the board of supervisors approve motion to be for the approval

[00:25:00] of the resolution as provided in the september 10th 2025 public hearing item number three staff report. Second. I'm sorry, Mr. Turner, do you want to second that one? Yes, ma'am. I'll second that.

[00:25:16] Okay. Motion made by Supervisor DeCrony, seconded by Vice Chair Turner. Any comments? Yeah, I just want to say that this project proposes to construct a four-way signalized intersection between Evergreen Mills Road, Watson Road, and Reservoir Road, and will implement the recommendations outlined in the Evergreen Mills Road and Watson Road Road safety audit completed in 2019. If you will recall, there was a tragic accident at this intersection in 2017.

[00:25:50] This project is designed to improve the lines of site and safety along this segment of Evergreen Mills Road and will add right and left turn lanes from Evergreen Mills Road. This important safety project requires land rights from nine properties, and staff has been trying to work with the property owners to acquire the needed properties so we could move forward with this needed safety improvement. Further delay in acquiring the land rights will impact the project schedule and the cost. Thank you. Thank you. Any other colleagues have comments?

[00:26:24] Mr. Turner? No, I'm good. Thank you, Madam Chair. Sure thing. All those in favor, please say aye aye that motion that motion will pass 801 moving on to item number four and I'm going to go to my colleague from Sterling for this motion thank you madam chair I move that the board of supervisors approve motion to be for approval of the minutes to chapter 1020 as provided in the September 10th 2025 public hearing item number four staff report second motion made by supervisor Sainz, seconded by Supervisor Briskman. Would you like to make some comments? Sure. This has been a

[00:27:05] long time coming. We started, I think, in 2021 when myself and Brisbane and others brought this motion forward for the staff to look at renaming some streets here in Loudoun County. We knew that we were going to get some pushback, but it was the right thing to do uh because again there should be no remembrance of folks who i'll just simply put if they had their way a few of us sitting up here would not be sitting here a few of us would

[00:27:42] not be attending the schools that we did our children would not be attending the school with your children um and another thing so you know if you don't agree with that then i i just say i'll pray for you um you talk about equality for all and justice for all um that's what that was the spirit of why we brought this motion forward to fix that injustice because again just look at

[00:28:18] that simple example i gave you there's three of us up here that again if some folks had their way we went and went to school with a lot of you i wouldn't be sitting here i'll be just imagine use your imagination so if you can't get with this then i'm sorry i'll like i said again i'll pray for you so i thank my colleagues for for voting with this and and fixing this the writing this wrong and uh we will continue to work to to improve loudon and the little ways that we can

[00:28:54] thank you thank you supervisor turner any comments no ma'am no comments okay i don't see any other lights on i'll just uh by way of background um supervisor sains and i brought an initiative in 2021 after the state had given localities authorities authority to remove confederate statues from our grounds anywhere that you know where we owned property and then along those lines

[00:29:27] we started to think about well we have a number of streets and highways and parks and those sorts of things in the county that remain honoring basically traitors, confederates, and even those who

were segregationists, and, you know, would rather shut down our entire school system than let African-American kids join in the classroom.

[00:29:55] And so we brought an item forward to inventory all of those names in the county to see which ones needed to be changed. Supervisor Sainz immediately had us do, I think it was Route 50 and Route 7, immediately. And we worked with Fairfax County to make sure the names would be contiguous.

[00:30:15] And again, we had parks and those sorts of things that were renamed. And I am super proud of our work. I don't think that anybody should have to walk by a statue, drive down a street, play in a park or go to a school that is named after somebody who would rather see them enslaved and would tear apart our country over that issue. So again, I'm really proud of our work, and thank you, Supervisor Sainz, for working with me on it. Motion made by Supervisor Sainz, seconded by

[00:30:53] Supervisor Briskman. All in favor, please say aye. Any opposed? That motion carries 801, and we will move on to um oh and ms wall thank you so much for your comments i don't know if you're still here but thank you so much for your comments um we will move on to item number five and that would be little river thank you chair brisbane i move that the board of supervisors approve motion to be for the approval of the renewal as provided in the september 10th 2025 public hearing item number five staff report motion made and seconded uh supervisor to crony do you have any opening

[00:31:33] no opening okay any other comments mr turner no comments sorry you keep catching me off guard okay okay thank you uh all in faith uh motion made and seconded all in favor please say aye aye any opposed that motion will carry 801 with um chair randall off the dais um we will move on to item number six little river okay i move that the board of supervisors approve motion to be for the approval of the renewal as provided in the September 10th

[00:32:07] 2025 public hearing item number six staff report motion made by supervisor to crony and seconded by supervisor glass any comments nope no comment okay um supervisor turner

[00:32:30] yeah okay uh supervisor turner i said no comment did i guess it didn't trigger sorry i said supervisor turner may i assume that you won't have comments on the forestal and agricultural districts thank you madam chair if you don't hear from me i'm i'm with the group okay thank you okay all uh all those in favor please say aye aye any opposed that motion will carry uh 801 with chair randall off the dais and now we move on to item eight yep little river yep

[00:33:07] i move that the board of supervisors approve uh motion to be for the approval of the renewal as provided in the september 10th 2025 public hearing item number seven staff report sorry that was number seven uh thank you motion made by supervisor to crony second invite supervisor sayings i don't see any lights on all those in favor please say aye aye any opposed absolutely no comments madam even from afar supervisor Turner even from afar that motion will carry eight zero one with chair Randall off the days item number

[00:33:46] eight I will go to my colleague from Catoctin hey madam chair I move the Board of Supervisors approve motion to be for the approval of the renewal as provided in the September 10 2025 public hearing item number eight staff report no comment Motion named by Supervisor Kirshner, seconded by Supervisor Umstead. All those in favor?

[00:34:07] Aye. Any opposed? That motion will carry. 8-0-1 with Chair Randall off the dais. Item number 9. Item number 9, I move the Board of Supervisors approve motion 2B for the approval of the renewal as

provided in the September 10th, 2025 public hearing. Item number 9, staff report.

[00:34:24] Second. Motion made and seconded. All those in favor? Aye. Any opposed? That motion will carry 8-0-1 with Chair Randall off the dais. Item number 10. I further, number 10, I move the Board of Supervisors approve motion 2B for the approval of the renewal as provided in the September 10, 2025 public hearing item number 10, staff report.

[00:34:47] Motion made and seconded. All in favor, please say aye. Aye. Aye. Any opposed? That motion will carry 8-0-1 with Chair Randall off the dais. and now we have item number 11 which is algonkian district i move that the board of supervisors approve motion to be for the approval of the special exception as provided in the september 10th 2025 public hearing item number 11 staff report motion made by supervisor briskman seconded by supervisor sayings i will just say that this is for a restaurant most likely taco bell that's

[00:35:23] going into cedar lake plaza it's by melody music and i'm forgetting the name of the grocery store there but um we went over their plans um i think it was last week and it will be a nice addition to that shopping center any other comments okay motion made and seconded all in favor aye any opposed that motion will carry 8-0-1 with chair randall off the dais item number 12 supervisor sains all right let's see okay i move that the board of supervisors approve motion 2b

[00:35:58] for approval of the zoning map amendment as provided in the September 10, 2025 public hearing item number 12 staff report. Second. All right, this is for the BAPS. They're relocating from their location off of Route 50 to the Sterling District and we are glad to have them.

[00:36:17] They'll be moving to a bigger and better facility to provide all types of good, they do a lot of a lot of work humanitarian work for providing meals for for families and individuals in need religious services and counseling and uh and schooling as well to their youth so looking forward to this when it comes to fruition and looking forward to the ribbon cutting when once that happens so welcome to sterling thank you any comments supervisor turner this is not a forestal district no comments thank you i just have one question And what does BAPS stand for?

[00:36:57] Oh, sorry. Okay, you can tell me offline. Okay, happy to support. Motion made by Supervisor Sains, I think seconded by Supervisor Glass. All those in favor, please say aye. Aye. Any opposed? That motion will carry 8-0-1 with Chair Randall off the dais.

[00:37:16] And now item 15 to Supervisor Tacroni from Little River. Thank you, Chair Pressman. I move that the Board of Supervisors approve Motion 2B for the approval of the Comprehensive Plan Amendment as provided in the September 10, 2025 Public Hearing Item No. 5 Staff Report.

[00:37:34] Second. Would you care to open? Yes, yes, definitely. I want to thank the two speakers who came out tonight, Madeline and Jennifer. St. Louis is the first small area plan to be completed, so we have completed one. Here it is. We have 15 that are scheduled for a small area plan and Just so everybody knows the board endorsed the st. Louis village area Plan in January of 2022, so it took almost four years to complete this plan I agree that there are lessons learned that we can take for the next plans

[00:38:12] I want to thank staff Heidi Siebentritt and Jennifer Moore the citizen task force Madeline you were on it, and I see Sharon. Thank you so much for all that you guys did. St. Louis residents, Robin Eve Jasper, Dale Polin-Meyers, and Chair Randall for their dedicated work on the St. Louis Small Area Plan.

And now it is time to move on to implementation. I'm very pleased this motion includes the nomination of the St. Louis Village to the National Register of Historic Places.

[00:38:46] The village is eligible for listing because of its historic significance, and currently there is only one historic African-American community that's listed in the National Register, so it'd be great to get St. Louis on the register. The new zoning regulations will be investigated in the ZOAM phase.

[00:39:10] So this is the CPAM. The ZOAM phase, we'll look at the zoning and we'll, you know, look into what the community wants regarding zoning, whether they want commercial uses, whether they want more development, which I heard loud and clear they don't want.

[00:39:27] So that'll be the time when we can look at the zoning and what the community wants for the village overlay district. uh chair randall and i did host a community meeting in august to give updates we have moved on to some um some of the implementation already regarding water quality issues stormwater drainage management the board of supervisors approved a speed management study which vdot is looking at and i hope to get pole mounted speed display signs up in the village shortly we talked about a cell

[00:40:05] tower so that people could get good cell coverage and broadband and i can just make a commitment right here that i am i will continue to host community meetings i know chair randall will too i feel it's really important to come out and hear the voice of the community and also to give updates because there's a lot to do if you look at the implementation chart there's a lot of items that we have to work on um and and and i am very committed to making sure that we take care of the the community, and that we implement the plan that you work so hard on. Thank you.

[00:40:40] Thank you, Supervisor Tacroni. Supervisor Turner, Vice Chair Turner, I'm sorry, do you have any comments? No comments, Madam Chair. Okay, thank you. Supervisor Kirshner. Yeah, thank you. Very briefly, I'll be more brief than Supervisor Tacroni. Just because she said everything, everything good, right? Okay, anyway, no, I do want to associate myself with many of your comments, and I do want to thank St. Louis and all those who participated for kind of being the guinea pig in this process um our villages our towns and villages in in especially in western loudon are such a unique aspect of the history the uniqueness of them it it really um each each

[00:41:19] village kind of uh kind of defines the area in many ways and i think um when we put this forward a number of years ago on in our last board it was the idea is to preserve um the way of life the area, the feel, the look, the historical aspects, etc., and the list goes on in Western Loudoun and in these various areas. And so I'm very glad to see that we have moved to the next stage for the St. Louis village plan, and obviously I look forward to many of the villages that will be going forward in Western Loudoun and will obviously be far more active in the process

[00:41:56] since many of them will be in Catoctin. So thank you very much for being the guinea pig and for for those of you who all participated and had such a major role in the staff as well. And I only took, yeah, 35 seconds. - Thank you. So I just want to say that I appreciate the community and your patience with the process.

[00:42:20] I know that sometimes things take a little longer than we would like when we're working on issues in the county and I know this got delayed a little bit probably because of the Zohr and COVID and all those things. But I will say, even though I also get frustrated with the length of time it sometimes takes to

get things through, you cannot deny the quality of the work that finally comes out from our staff and from this county.

[00:42:50] And especially, it is made even better by all the community involvement and engagement. So I appreciate the community, and I appreciate supervisors, Kirshner, Ticoni, and Chair Randall for all the hard work on this. Chair Randall couldn't be here tonight, but she did give me a statement of hers to read during this item since she couldn't be here.

[00:43:13] Chair Randall's remarks. First, I want to thank staff who worked on this. I want to especially thank Commissioners Pullen-Meyers and Jasper. I want to say that it was Commissioner Pullen Myers and Commissioner Jasper who halted the process to ensure that the voice of the people of St. Louis was heard.

[00:43:31] I want to thank the people of St. Louis themselves for their involvement and patience for far too long. The village of St. Louis has not received the attention that other parts of the county have received. This plan is the first step in correcting that mistake. So that from Chair Randall.

[00:43:48] Okay, not seeing any further comments. Motion made by Supervisor Ticoni, seconded by Supervisor Kirshner. All those in favor, please say aye. Aye. Aye. Any opposed? And that motion will carry 8-0-1.

[00:44:06] And that passes, so that is not going to be going to a business meeting. We are moving on. Okay, and with that, we will move on to item number 13. Thank you, everybody.

[00:44:26] Thank you.

[00:44:48] Yeah. Okay. Yeah, let me get on the right page. Okay.

[00:45:08] I think we will start with the staff briefing on this. Thank you. Good evening. My name is Dorothy Baker with the Department of Planning and Zoning. The case before you is Leji 2024-14. The subject property is located at the intersection of Oatley Road and Soclot Springs Road. The parcel is located in the rural policy area, the rural north place type, and the Catocton Election District. The proposal is a special

[00:45:48] exception request to permit a dog kennel in the AR1 zoning district. The parcel is a 4.85 acres and existing conditions include a single-family dwelling, a second stucco building, and several fenced-in areas. Access to the property is off of Silicot Springs Road. The kennel, currently in operation and outlined in blue, includes the first floor of the stucco building, 1,344 square feet, a 10,638 square foot outdoor run area and a path that connects to two. Currently the outdoor run area is surrounded by a three and a half foot tall fence. Ms. Baker could you just pull your

[00:46:26] microphone just a little bit closer? Is this better? Yeah okay I'm so sorry. The Loudoun County 2019 general plan supports business uses in the RPA that are compatible with the rural character of the area. In general a kennel is considered consistent with the place type as a rural business. To ensure compatibility, staff recommends conditions addressing the maximum number of dogs to be limited to 15, including personal pets, hours of operation, including drop-off between 8 and 10 a.m. and pickup between 4 and 6 p.m., a minimum of two staff, and limiting the use to

[00:47:01] the designated areas on the specs plot. Additional conditions address handling, waste, water quality, landscaping, and fencing. The Planning Commission recommended approval with two modifications to the conditions of approval. First, the existing three and a half foot tall fence will be

updated with a six foot privacy fence, and two, the maximum number of dogs allowed in the outdoor run area during the day will be limited to four. Staff has accordingly updated the conditions. Staff supports a recommendation of approval of this application subject to the recommended conditions of approval. The application is generally consistent with the policies of the rural

[00:47:40] north place type. I stand ready to answer questions. Okay, just a moment, colleagues. If you do have questions, you can put your lights on. I meant to say members of the public wishing to address the board regarding this item who have not already done so, please call the number, scrolling across your screen, and I already turned it over to staff. And I will go to Supervisor Kirchner first. I think it's your district. Yes, thank you, Madam Chair, and thank you, staff, for your work on this.

[00:48:10] So, obviously, this is a special exception, correct, that's coming for the board? Yes, sir. And so it's gone through the Planning Commission and they have approved, they've moved it forward. Now it was 5-4 vote. I had a couple of questions because I didn't have an opportunity to watch that. My understanding was it was largely 5-4 because some of the weren't necessarily against it, but they wanted to move it to a work session.

[00:48:32] Is that correct? The Planning Commission discussed moving it to a work session. Okay. There was a lot of conversation about the fence and the number of dogs and noise concerns. Okay. Especially during the day. then there was a general agreement that with those two modifications that it would be okay to move forward. Okay. So those modifications are recommended. Are they in the conditions of approval now? Yes. So the applicant has agreed to put those in the conditions of approval? Yes.

[00:49:06] And that is the fence as well as the limitation on the number of dogs? Yes, sir. The six-foot privacy events and the limiting of the dogs during the day. Okay. Now, the applicant is presently running a -- has a business there, and this was a report that they've now come in, gone through this process to come into compliance, correct?

[00:49:26] Yes. The business is currently in operation. Staff received a complaint that a business was operating without permits. Okay. an official NOV notice of violation was never issued because the applicant immediately started going through the process. Okay. Okay. And how long have they been in existence? Are you aware?

[00:49:49] I think the applicant can provide clarity on that. Okay. And that's fine. Now, is there, under the zoning ordinance, is there a limit on the acreage that you can use? Is it five acres the minimum? Or is it smaller than that? What is the, do you know the answer to that? So in the use standards, there's no minimum acreage.

[00:50:08] Okay. I can assume that you are asking about the number of dogs in relationship to the acreage. Yeah, the number of dogs in relationship, or what, I guess, ultimately, if there were any restrictions on it. Because I didn't see it in the item, but that's why I was asking.

[00:50:26] It's a very valid question. There isn't a tipping point where, like, the number of dogs is good versus, like, bad. I think every kennel application is evaluated independently in relationship to the property.

[00:50:44] Where is the kennel located? Is it close to, you know, how big is it? Are there noise restrictions? Is there screening and buffering in relationship to the property itself? Okay. Is there, could you go back to

the map that you had in there real quick? Do we know what the closest house is to the actual kennels themselves, what the distance is?

[00:51:04] Yes. Yes, the aerial map is probably the best. i think my time's out after that i have that um can you see my a little bit yeah um so like this house right here to the north that's about 362 feet um this house over here is about 526 feet and this is measured i i'm these are estimate measurements that i based from the location

[00:51:37] of the outdoor pen area the outdoors run area where the dogs would be to the house from the edge of the pen where the fenced in area where the dogs would be outside i have more measurements if you want them okay um oh i can see you right here go ahead this house right here across the street is about 434 feet this house right below it is about 523 feet and the house across oatly

[00:52:15] road is about 369 feet. Thank you. Vice Chair Turner, do you have any questions for staff? I do not. Thank you. Okay. Oh, yes. Go ahead. Supervisor Tocroni. Thank you, Chair Brissman.

[00:52:35] So what about the road access conditions? Because I don't think, I mean, are they all paved roads entering? It looks like Silcott Springs Road is paved. Am I correct? Or is that unpaved? I believe it is paved. Yes. Okay. It is paved. Thank you. So the road conditions are adequate, right, to get to this property. Yes, staff does not have any concerns about the road. Okay, thank you. Okay. All right, we'll move on to the applicant. The applicant will have 10 minutes for a presentation. You can either stay at the table or go to the podium,

[00:53:11] entirely up to you, but do turn on your microphones, please. Okay, great. Here we go.

[00:53:39] Okay, good evening, Board of Supervisors. My name is Megan Alfaro, and I'm here with my husband, Pablo Alfaro. We're the owners of Dog Home Away from Home Kennel. Thank you. Dog Home Away from Home Kennel in Percival. There we go. I'm just going to briefly go over our story, how we got started, our purpose, talk a little bit about why we believe Loudoun County needs affordable pet care options, and then how we're complying with the zoning ordinances, and then the takeaways from the Planning Commission meeting. And we wanted to also address some concerns of home value.

[00:54:15] and then we'll talk about our promise. So this really started, um, as a way that we wanted to teach our children. We have five children. Um, we started as we wanted to teach them the value of hard work. Um, what we didn't realize is we really started to, uh, change and now we're really serving all of our local families in Loudoun County. The demand for, um, pet care is enormous And we, you know, based on our love for animals and responsible care, this has grown into something that we're very, very proud of.

[00:54:51] We're real proud we've won three years in a row Best of Loudoun Dog Kennel. It's something that all five of our children have been a part of and that we're very proud of. We really feel that Loudoun needs affordable pet care. growing population. I think that everyone here realizes Loudoun County is home to over 440,000 residents. Approximately 35% of all households have at least one dog. That translates into about 55,000 dogs in our county. I do believe it's probably more than that. We are proud to offer

[00:55:28] an affordable pet care service. We do feel that families in Loudoun are being priced out of quality care for their pets. Lots of places are charging for things like giving medicine and walks. We treat all dogs, regardless of size, exactly the same, and we're happy to provide an affordable place with excellent care. We believe that socialized dogs, dogs that come to daycare and dogs that are boarded, are better for

our county. They make the community safer. When dogs are well adjusted and they're used to being around other dogs, it creates a safer environment in our dog

[00:56:05] parks and walking trails. And just exercise and social interaction is really important for mental and physical health. So we'll go over just a few pieces of how we comply and what we do to make sure that we're mitigating safety and noise and cleanliness and traffic. So safety and escape prevention so today we have a three and a half to four foot fence that you saw on the in the staff report that we are going to raise that to a six foot privacy fence along the perimeter of the dog play area and then outside of that the entire property is also secured by a second layer of protection with a fence

[00:56:44] and locked gates other safety measures is we have a human with the dogs at all times that means that we're watching them making sure that they're not misbehaving, digging holes, trying to get out. We also have a pretty strict kennel visit process where any new dog that comes into the property, we have to assess them and they go through a test.

[00:57:07] We do have to just not have dogs that we have deemed that are not safe or that we think wouldn't be in a good kennel environment. We have nine security cameras on the property that we have access to on our telephones. We've got a locked combination door on the kennel building. We have fire and carbon monoxide detectors as well. This is just a picture of a proposed six-foot privacy fence. We haven't put anything up, of course. We're waiting for this meeting, but we understand that

[00:57:42] we need to do that, and we're ready to do it right away. Some other safety mitigation techniques. This view is from the play area, and there's an additional fence. That's our driveway, and this really helps deter barking with dogs. So if a dog is being picked up or someone's in the driveway and they don't see it, it's less likely that they're going to bark. So dogs are supervised all at all times. We use anti-barking techniques to keep them relaxed. And as proposed in the planning commission, taking four dogs out at a time. The kennel building has a double insulated

[00:58:20] wall and sound dampening blankets. We pipe relaxation music into the kennels. That's mostly mostly for when we have storms but we do it all the time so that there's relaxation music and that the dogs do not hear like when a car comes in the driveway they tend to stay quiet we've already planted 20 skip laurel evergreen shrubs outside of our property but you'll see in the plat we have proposed more plantings for buffer trees that we're ready to plant and then dogs are inside during drop-off and pickup hours meaning if we have dogs that are boarding

[00:58:56] during that those hours we keep them inside so that we just go inside get the dog so that they're not um the other dogs in the if they're in the field they will be barking when they see folks um more noise mitigation techniques again if the dogs can't see outside of the fence um it's it's better we also you know with the six foot fence which is not pictured here because we don't we haven't installed it yet that will help even more so cleanliness and odor control so we are very very strict. We run a very tight ship with cleaning. The kennel and the play areas are

[00:59:33] sanitized every day. We sterilize all the water and food bowls between each meal. We require that the dogs use our bowls so that we can control that. We clean and sterilize all the kennels daily. We deep clean them between dog reservations with a product called Kennel Sol. Dog waste is collected throughout the day all day and they're disposed of in sealed containers and then this is picked up every Wednesday by a company called Pet Domestic, and they take that away. And just pictures of our kennels. The kennels are approximately six feet by five feet steel.

[01:00:09] We provide beds, water bowls, and food bowls, and we have a whiteboard on each kennel that shows their food and if they have any medication requirements. And we've heard a lot about and read a lot about our neighbors with the concern for their home value. And, you know, we take that seriously uh we live in a community that we really care about um we did conduct we contacted a local realtor and we got some data you know showing that the home values around kennels have

[01:00:45] not experienced a decline in value um and i'll just kind of go through a couple of them we went through the exercise of breezewood kennels which is in round hill the kennels at stone lay in Percival, and then VIP boarding in Lovettsville. You can see the ones near Breezewood sold in July at 5% over the asking price. The one over in Mountain Road across the street is Hyatt Lane sold for 10% over the asking price, and then VIP boarding as well sold for their asking price.

[01:01:15] So we talked to realtors. The one that we contacted, she mentioned that there was no hard evidence that living next to a dog kennel would actually decrease the value of your home having said that we are completely willing to work with our neighbors when i understand that they want to show their homes so we're really committed to being good neighbors we have no interest in in being difficult people we're really proud of what we've done in our entire operation it's been years of learning and making mistakes and learning from those mistakes and we feel that

[01:01:52] we've got a really good business that is really valuable to the county and that our customers, we've had a lot of support. I think you've received the 19 or 20 letters of support. Really great customers that just want a safe place where the dogs can run outside in Loudoun County. And this is just a picture of our plat. You've already seen it, but just wanted to provide that as well. And then our promise. We have no intention at all of expanding. We are not

[01:02:25] changing anything in our operation um we will as concerns arise we'll address those we are not doing any new construction we're not disturbing the land we're just we want to remain fully compliant um we've learned an awful lot about zoning ordinances and reading um i feel like we have a master's education in this now but um we're really we want to be good business owners and if concerns arise, we would love to talk about them with our neighbors and the community and address those.

[01:02:59] So thank you very much for giving us the opportunity to speak today. Appreciate it. Anything? Thank you. I'll go to Supervisor Kirshner first. So yes, thank you, Madam Chair. So thank you for coming in today and thank you for, I know sometimes going through this process of a special exception is not easy, it's not cheap, and it's a lot of hoops to jump through, but obviously we have zoning rules for a reason.

[01:03:25] And you have demonstrated, I think, a lot of faithfulness to the process. And so I just want to commend you for that, especially a number of the things that you've agreed to do so far, which, you know, because anytime you have a special exception like this, especially for a use that's approved like an AR1, which kennels are, the idea is to, you know, kind of balance.

[01:03:46] Does this fit the intensity of these use? Does it fit the area? Does it fit the parcel of property? To me, it seems like it does. Obviously, I'm going to hear from a number of the neighbors to hear what they have to say, but I want to first of all thank you for agreeing to the fence because I think that was something the Planning Commission suggested and a number of the other things that you've done, including your plantings, your commitment to try to be as good a neighbor as you possibly can and to also limit the number of dogs that are coming out.

[01:04:13] So I have a couple of questions. I know you've committed to the plantings. I don't know if there was a map up there, but along which area were the plantings going to be put in and what kind of plantings did you plan to do? I think it would be helpful for my colleagues and for me as well. Sure. This is kind of a small picture of our plat, but if you can see as you're looking at it from where you're sitting on the left-hand side, there are like, it looks like seven dots.

[01:04:38] Those are where the, they are skip laurel bushes that are planted today. We've already done that. We also plan to plant some on the side of Otley Road. You can see as well. Yeah, down at the bottom of the screen that we plan.

[01:04:54] Thank you. Well, down at the bottom of the screen. There we go. We plan to do that as well as buffering. We've even just personally thought that maybe it would help if we did even more closer to where the dog run area is.

[01:05:11] And we're totally open to that as well. As we planted some, we realized, like, hey, this is kind of nice. that's something that we. I think I think anytime I mean even even without a dog kennel sometimes those are nice just but I obviously there's some concerns from the neighbors I'm sure because of the noise. There was there was a note in the staff report that talked about possibly conditions to limit the kennel use to the capacity of on-site water sewage disposal system. How are you planning on managing that? Yep so our we don't give dog baths or anything we don't do any of that. We

[01:05:47] don't groom dogs um we wash our dog bowls and the area that we wash the dog bowls and the utility sink does not run off into our drain field at all we have it um redirected with some pvc pipes so that's how we'll mitigate that okay and then i think finally um how have you been you said you've limited to 15 dogs how many do you kind of generally have right now on average uh today we have seven um we are in a slower season because school just um came back but we were definitely full all summer um there's a huge demand so 15 but we'll be in a slow season now until

[01:06:26] thanksgiving christmas spring break that's the typical thank you thank you um supervisor turner do you have any questions for the applicant vice chair turner sorry no ma'am i do not thank you Supervisor Tocroni?

[01:06:46] Yeah, thank you, Tara Brissman. So thanks, Megan and Pablo. What, have you, I noticed that you haven't had any community meetings. Have you reached out to your neighbors just to see kind of what their concerns are? Yes, we have reached out to them, and that's why we're aware of, you know, the home value concerns.

[01:07:06] We haven't received any formal noise complaints or anything. So the ones that we're aware of are concerns about home value when they want to sell their homes. Okay, thank you very much. Sure. Okay, I don't think I have any questions.

[01:07:23] So we will go to public speakers, folks that want to give public input. I will start with those who are in the room, and that is Nancy Meissner, Joseph Ville, followed by Jen Imhoff.

[01:07:41] oh another one thank you hi i'm nancy meisner i've lived in my home for 33 years directly across from dog away from home kennel the applicants of this kennel have been operating a commercial dog kennel for several years without required approval and direct violation of the zoning ordinance

[01:08:16] complaints have been submitted to the county yet the unlawful operation has been allowed to continue the fact that the kennel has operated illegally for years raises serious concerns about whether the applicants will comply with any for future conditions if these specs is approved the proposed kennel would operate seven days a week allowing for two dogs to be outside between 9 p.m and 7

[01:08:48] a.m. and have daycare and overnight boarding. These hours of operation are not enforceable. The property owners have demonstrated a persistent disregard for zoning regulations. The operation has already caused significant negative impacts on nearby residents. The application fails to meet key evaluation criteria for a special exception. Approval would set a troubling precedence

[01:09:23] that zoning regulations can be ignored until formalized after the fact. The noise, traffic, and industrial nature of this kennel undermine the character of our neighborhood. A 4.85 acre lot is simply not sufficient for a kennel of this scale especially in a rural residential area the intended use may be considered a rural economy use only when it poses no threat to public health and

[01:09:59] safety and is compatible with the surrounding uses this proposal does not meet those standards many residents have submitted opposition through email and other means these comments should be taken into account as they reflect real lived experience experiences from neighbors who are directly affected thank you thank you uh joseph vill will be followed by jen imhoff who will be

[01:10:31] followed by eileen vroom good evening good evening madam chairwoman and board members my name is Josephville and I speak on behalf of myself, my wife, and the other neighbors whose residents adjoin the applicant's property. We realize that this special exception land use application is not a data center subdivision or power line issue. However, we ask that you consider our opposition to this application because we are the people who would be most impacted by your decision. We have

[01:11:09] all emailed our concerns to you prior to the hearing, including our real-life experiences experienced noise nuisance and disruption caused by the continue operation of this kennel as instructed I submitted a complaint number one four one six five three three regarding the kennels operation and signage to the loud and lex zoning complaint system on July 23rd 2023 the signs were removed but the kennel has been permitted to continue operations to the present day

[01:11:44] and no violations have been issued at the planning board meeting or hearing when members asked about the initiative initiating complaint Ms. Baker reported that she checked with code enforcement staff and no complaints were received it is worth noting that planning board member Ms. Jasper who inspected the site commented that six or seven dogs were present in the outdoor area and it was quite noisy. When questioned how a 15-dog capacity was established, I believe it was a Mr. Wegner,

[01:12:20] he wasn't introduced, responded it was the applicant's self-limit request and staff determined it to be appropriate for the size of the indoor and outdoor kennels or areas. There is no doubt that 15 dogs can be accommodated in the indoor-outdoor areas provided.

[01:12:39] What is more pertinent is whether the impact of the indoor-outdoor 15-door kennel is compatible with the scale and intensity and preserves the rural character of the area as required for such specs. Prior to the kennel's operation, the rural character of the area was the quiet enjoyment of the surrounding residents' properties. The applicant's property is 4.85 acres and most of adjoining parcels are also under five acres i stated in my email to you in 2004 a special

[01:13:15] exception application for an eight dog thank you mr bill mr bill your time is up if you have any other comments you can either leave them with the clerk or email the board thank you thank you for your considerations uh jen imhoff followed by eileen vroom and then followed by william vroom thank you again for your time um i didn't realize this was on the docket so i'm going to speak today about it again i've heard the naysayers to this operation i travel down silcock springs road

[01:13:55] almost daily i have observed that facility and it's been always well kept very well kept right across the street catacora which doesn't show on here but there's talley oaks veterinary clinic they have a horse farm there we're in an agricultural area they're offering to put in a six foot fence which is bigger than my neighbors fencing for their dogs right i had i didn't buy a property once because there were five dogs in the next door in the neighbor and they were out all day unsupervised barking all the time i have never seen dogs out in that area unsupervised i've

[01:14:30] always seen somebody out there with the dogs so i i have a neighbor now who has one dog the doc walked for 20 minutes the other day when i was walking mine 20 minutes non-stop okay that's one dog in an area right unsupervised again they have supervised dogs hey we got loose cows we get loose horses we get loose dogs from people's private yards we had a lady who had a dog sitter the dog got lost twice i'm chasing some of these dogs sometimes okay in the neighborhood right i

[01:15:04] I haven't heard of any dogs getting loose from there where I think there was maybe one time on social media somebody complained about it and it was quickly caught, right? Sometimes dogs jump fences, you know, by mistake a six foot one will probably deter most dogs, right? But the point is they're making an effort here.

[01:15:23] You know, I have dogs, other neighbors have dogs. There's no limit on how many dogs you can have in your house or a requirement for your fencing, right? But maybe they didn't do things right by a permit. I don't know why getting a permit to begin with, but they're trying to remedy that now.

[01:15:40] We do have a need for boarding here in Loudoun County for dogs. A lot of people own animals. It's very expensive in some of these kennels. I've looked into them, and I wasn't really satisfied with the conditions I saw in them. So when you talk about property value and whatnot, there was one person on social media that was going about how expensive, you know, like, oh, it's a kennel that's taking down my property but they just bought their property so they bought it knowing they were next to a kennel okay that's like buying a property and complain on gravel road and complaining about the dust it's ridiculous so i support their special access or their special zoning permit thank you miss

[01:16:19] thank you um so eileen vroom followed by william vroom and then followed by wayne parsons hi good evening thanks for having me um i'm eileen vroom and i'm speaking this evening in opposition to the approval of the home away from home kennel special exception I'm a 39 year resident of the county and have resided on Silcott Springs Road for that entire time my property is located directly next door to the kennel on the south side in July the Planning Commission narrowly voted to approve this kennel

[01:16:59] operation in a 5/4 decision this brought up many questions and observations that were not completely or sufficiently answered in my opinion and here are some the concerns that I have and I've already sent a letter to you all with those in there. This kennel has gone from a dog daycare Monday through Friday to a 24/7 daycare and boarding operation. I cannot believe the county would allow this type of business to be run in a rural residential neighborhood. This could potentially increase traffic by 30 additional car trips per day

[01:17:34] seven days a week and this is not a right the right fit for this area. This operation has been running illegally for several years which is why we're here tonight why has this been allowed to continue unabated ar1 zoning allows four dogs per household this is in place for a reason and and simply to avoid this type of situation from happening 15 dogs on a 4.85 acre residential parcel is too many dogs for this size property again this is a residential neighborhood on mostly

[01:18:09] five-acre parcels. It's not a large agricultural tract of 20 acres or more. The noise will not be stopped by vegetative barriers, barking travels, and cannot be suppressed by bushes or even fences. This is a nuisance and disruption to the neighborhood, and we're already experiencing this. I'm encouraging the board to deny this special exception or at least send it back to the Planning Commission for further review. I don't think this has been sufficiently vetted by the county many residents whose properties surround the kennel are retired and would like to enjoy

[01:18:44] the peace and tranquility of western loudon if this is approved we're the ones who have who have to live with the consequences this could set a dangerous precedent for rural properties of this size in the county thank you sorry thank you uh william vroom followed by wayne parsons followed by Lorraine Gruca. Good evening. My name is Bill Vroom and I want to voice my opposition to the

[01:19:18] proposed dog kennel at 19211 Silcott Springs Road. My family have lived adjacent to that property for 39 years without any issues until the current owners chose to operate a kennel that violates the county ordinances. Allowing a commercial kennel of 15 dogs to board 24-7 is in violation of all the surrounding property owners rights we previously had a hearing with the planning commission that allowed public comments that comment period did not occur until almost midnight

[01:19:52] six hours into the hearing with the plan by that time all the commissioners could have cared less about hearing our appeals to shelf this zoning request four of those commissioners did show some interest and voiced concern over the noise and said kennel and the number of animals being allowed to be boarded the other supervisors ignored the issues proposing that a six-foot fence would solve the issue only one commissioner bothered to visit the kennel site where does the number 15 come from

[01:20:26] my understanding is that by right a homeowner can house four dogs a number that the kennel operators have ignored and overstepped after being informed of the ordinance violation. What will they do if they are given approval for 15 dogs? How's the kennel with 45? What will stop them? The county authorities have chosen to ignore their duty to enforce the zoning ordinance. In fact, it does appear they have done nothing in their power to help the kennel operators skirt the rules and issues. The county authorities have instead chosen to help the kennel operators

[01:21:03] file for special exemption at the cost of the property rights of adjacent neighbors why has the once of a single property owner trumped the rights of so many others that choose to abide by the rules and regulations of our county i requested the special exemption be denied or at the very least sent back to the commissioners for further evaluation and public comment thank you thank Thank you, Mr. Vroom. Wayne Parsons will be followed by Lorraine Bruca, and then we have two remote speakers, starting with Allison Mauhoff.

[01:21:38] Thank you for letting me speak. I'm a neighbor and friend of Megan and Pablo. They're wonderful friends and great neighbors, and they always have maintained their property impeccably.

[01:21:55] They have been very, I think, very responsible. I walked by the property just the other day the way down to Tally Oaks where we have a friend who's the veterinarian there and there was three or four dogs with one of the workers and they were running around and making no noise whatsoever.

[01:22:17] I've also driven by multiple occasions that I've never seen more than two or three dogs out at a time and they're always supervised and I just want to attest to their character. I have a special needs dog belonged to my late wife and she needs a lot of care when i'm gone and they provide exceptional care for her and i appreciate it as both customer and as friend thank you thank you

[01:22:49] lorraine gruka followed by allison mauhoff and then mateo boreo good evening good evening i'm here to speak in approval of this kennel um i didn't know they'd be on so quickly and i just rushed here um i'm a resident of western loudon and i do use their services and i know pablo and megan as friends and they i to mimic and ditto the previous speaker that they are wonderful people and they care for their animals and i have never whenever i've dropped our dog off

[01:23:28] never heard any barking going on outside and I have someone who's always there to greet me at the gate in fact my dogs or dog is constantly wagging its tail because of who's greeting the person greeting the dogs I saw previous articles about it being residential just driving down Silicon Springs you can see at least two to three cow farms that have a whole whole slew of them on there as well as horses so to use the argument that it is just residential I have to disagree with. There's a definite need for this

[01:24:08] service in Western Loudoun County and they provide an excellent service for it they always have somebody there taking care of the animals and as I previously said my dogs that I bring there are in love with the place. I heard these same complaints and property values and noise and volume and pollution when the Philemon station for fires fire station was going in as I was a volunteer there it's all it's all rhetoric and it's you know just to make everybody afraid and

[01:24:43] if you have cow farms and horse farms pollution is already there so I you know are those arguments to me don't fly and I hope they don't with you either traffic when i hear traffic going down silicate springs today there was a bunch of traffic and not one of those cars did i see turn into this facility and it was constant going towards percival and going away percival and not one drove in there um so you know that's really all i have to say they're wonderful people and it's a great service and i really hope you approve what they're asking

[01:25:20] for them. Thank you. Thank you. And we will now go to a couple of remote speakers. Allison Mauhoff. Yes. Can you hear me? Yes, ma'am. All righty. Yes, I'm here to voice my support for Megan and Pablo and their boarding facility dog home away from home. I am a neighbor. I am two doors down from them. I'm not adjoining, but I am on Otley Road. I am not worried about my

[01:25:53] property value at all since moving in to my home. I was here before they moved in. My property value has doubled and I do not feel that there is a concern about my property value if I was to sell my home. When I am here in my house, I never hear barking all day long. I never hear it inside of my home. When I'm outside, I hear some barking, but it is not anything more than any of my other neighbors who have their dogs outside as well. It is not a consistent barking that you hear

[01:26:31] potentially from neighbors that can be irritating. It's just dogs playing and with that I don't even hear it that often. So in my opinion the barking is not a large concern. I am not concerned about any issues with cleanliness or smell it is always impeccable over there you wouldn't even know going by that

there is a boarding facility safety is also not a concern for me with them I actually board my dogs with them if I did not feel that this was a safe place that they had control over 15 dogs I would

[01:27:10] not board my dogs there and but I do and my dogs love it they they I don't even see them they're they're off and running and and they're gone because they just want to you know hang out with the folks and they just love being there i too also have never experienced traffic issues with anybody pulling into their driveway i think maybe on count on one hand the number of people i've seen pull into their driveway in the years that they have been in operation so That, to me, is also not a concern.

[01:27:41] So as a neighbor of theirs and as a user of their facility, I 100 percent support the approval of this special permit. Thank you. Thank you, ma'am.

[01:27:56] And our last speaker for the item is Mateo Barreo. Barreo, please tell me if I mispronounce that. It's Barreto. Thank you. Barreto. Okay, thank you. Good evening, members of the board and community. My name is Mateo Barreto, and I'm speaking in support of my family and my parents who own and operate Dog Home Away From Home.

[01:28:19] For me, this kennel is more than just a business. It's a reflection of my parents' hard work and the lessons they've instilled in my siblings and myself. Discipline, responsibility, and the importance of earning your way. Over time, we also discovered that Loudoun County needed an affordable kennel in western Loudoun where dogs could be outside, play, and truly thrive.

[01:28:41] That has been our focus since day one, and no matter what happens here tonight, I want you to know how proud we are of what our parents have built and the life lessons this journey has taught us. There's been a lot said in email chains with neighbors, online comments, and even newspaper articles that don't reflect reality.

[01:28:57] Let me clarify a few of the biggest concerns. On property values, people have suggested our kennel will decrease nearby property values. There's no concrete evidence to support that claim. In fact, there's no direct correlation between kennels and lower property values. Our property is well-maintained, our business is professional, and we've invested heavily to ensure it blends into the community.

[01:29:19] On noise complaints, the truth is we've never received a formal noise complaint. More than two years ago, one of our closest neighbors mentioned loud barking but later told us it had become way less noisy and perfect. Another neighbor has said they sometimes hear barking, but that it quiets down within a minute and does not bother them at all.

[01:29:37] On staff supervision, it's been said that dogs are left unattended. That is simply not true. The animal safety and well-being are always our top priority, and our staff are there to ensure they're cared for at all times. Some people have described our road as a tight-knit community. Respectfully, that is misleading.

[01:29:54] We live on Socott Springs Road, a paved road with both residences and businesses. Three properties are separated from us by roads, and only one is directly next door. A true tight-knit community would mean open conversations and honest communication. Instead, we've seen people go door-to-door with petitions against us without ever speaking to us about these alleged problems directly.

[01:30:16] At the same time, many of these same people have openly talked about moving and selling their houses. That makes it feel like these complaints are less about us and more about timing. Unlike

those preparing to leave, my family is committed to staying here and contributing to Loudoun County.

[01:30:32] We want to keep supporting local businesses, providing a service that families need, and helping make Western Loudoun a place where people want to live, visit, and invest in. We've always kept our door open for feedback, whether it's complaints, the suggestion, or just a conversation. Mr. Barreto, I'm sorry, your two and a half minutes has expired, but if you have anything else that you would like to say to the board you can always email bos at loudon.gov i guess thank you um okay uh that is it for the speakers on this item i will go to supervisor kirschner for a

[01:31:11] motion thank you madam chair i move the board of supervisors ford legy 2024 0014 dog home away from from home specs 2024-0028 to the October 21st, 2025 Board of Supervisors business meeting for action.

[01:31:29] Motion made by Supervisor Kirshner and seconded by Supervisor Umstead. Would you like an opening? I would. And so first of all, I want to thank everyone that came out. This is why we have this public process for people to express their concerns and also for applicants who are coming in asking for a specific use that falls under the zoning ordinance for that specific use, and I appreciate the Planning Commission, all the work they put into it, and all the neighbors, whether you're for or against those who supported and knew them. And I want to thank the applicant as well. I want to thank the staff who worked on this. There's a lot that goes into these. So thank you, Megan and Pablo, for coming into compliance. I think that's

[01:32:08] really important. I think there was a lot of talk about the persistence violation of the zoning, But we've always encouraged our staff to work with folks when they are not in compliance to come into compliance. And you've really showed a really good faith effort. And I think that speaks volumes to you.

[01:32:23] And I think also is kind of reflected in a couple of your neighbors who talked about your character and the kind of people you are. And I appreciate that. So we all want to be good neighbors. And I think that's a really important part, being good neighbors as far as following the rules. A couple of things that were brought up tonight I think is really important to point out.

[01:32:42] and uh first of all this is this has been approved by staff they really don't take these things lightly they look at them especially the scale and intensity of this and um i will tell you we have we recently had a kennel come in here um who we did not approve i did not vote for i did not support it for a variety of reasons partly the road partly the location partly um there wasn't there was some kind of bad information something i didn't hear tonight which was hey we've had all these issues before, it was more about, hey, they're not in compliance and this and that, so that, I think, is important to remember that we don't approve all these, we don't stamp these, staff's done a pretty thorough job on it.

[01:33:22] I would also, there was also some talk about property values, I just kind of quite frankly disagree with that, given a lot of the things that have been put forward here. And I think when you talk about the scale and the size, I don't know what that perfect number is for a candle that's allowed under AR1.

[01:33:39] I think staff as well as the applicant and I think the size of the property does seem to fit that. And I think once you add in a number of the other mitigators that have been put forward, the distance, that's one of the reasons I asked about the distance from the homes.

[01:33:54] I think the closest was over a football, about a football field and a half and the others were much further. The fact that you've committed to a six-foot fence I think is really, really important. The fact that you have other controls like training for barking, I think, I didn't ask you what that was but that's very interesting and obviously we continue to have also the screening I think that's also important all these things are really important in terms of how we measure this and whether we approve something along these lines or not.

[01:34:22] On paper everything really seems does for me to look really good I appreciate all the effort that you put in the commitments that you've made I will commit to those who are against this application to go out I'd like to have a site visit just to see what the plans are so i can see it in person it's a little more tangible and ultimately make my decision i'm certainly leaning towards supporting it thank you thank you supervisor kirschner vice chair turner do you have any comments i have none thank you madam chair okay uh seeing uh no other lights i just wanted to compliment the business owners on your presentation um we we don't often see the

[01:34:58] statistics that you brought um and i find it very interesting um the sort of market research that you did. I will also say that we, I just had a very large community meeting related to proactive, potential proactive zoning enforcement in my district and learned a lot, but also learned that staff will regularly try to get the violation fixed or try to bring the folks into compliance rather than, you know, slap on fees and those sorts of things right away.

[01:35:34] And so it looks like that's what they did here, and I appreciate you cooperating by taking the sign down and then entering this process. I know that it costs a little bit of money to do a specs with the county, so I appreciate your efforts in trying to come into compliance.

[01:35:49] I'll definitely support this motion tonight, and I will probably support it when it comes to the business meeting. Do you have a closing? No, we can vote. Okay. Motion made by Supervisor Kirshner, seconded by Supervisor Umstead. All in favor, please say aye. Any opposed?

[01:36:05] Any opposed? That motion will carry 8-0-1 with Chair Randall off the dais, and we'll see you in a couple of weeks. Thank you. Colleagues, do we need a break, or do you want to knock out that last item? Okay. Just one more, I believe. Let's boogie.

[01:36:22] Okay. We will go to item 14, Gloucester Parkway. Yeah, that's right.

[01:37:01] It's us applying to us. hello you are always so smiley okay we will go ahead and um you know what i think i'm supposed to read something before we start uh members of the public wishing to address the board regarding this item and who have not already done so please call the number scrolling across your screen i will now turn the time over to staff for any updates and a presentation a reminder to staff and the applicant when presenting or responding to questions from board members please turn your

[01:37:36] microphone on and speak directly into the microphone. Thank you. Good evening, Madam Chair. My name is Marie Pham with DTCl. I'm here to present this evening to you all the Gloucester Parkway CPAM. With me this evening, I have our Assistant Director, Heather Dietz, Dan Galindo with DPZ, and Shireen Durazio, our Director with DTCl. So in the 2019 CTP, the Loudoun County

[01:38:13] transportation plan. It currently includes the extension of Gloucester Parkway between Belmont Ridge Road and Cross Trail Boulevard. The map that you see here depicts that extension within the CTP. The red sections are currently those segments of the roadway that are not built. That would

include the western segment between Cross Trail Boulevard and Cochran Mill Road, as well as the eastern segment between Cochran Mill Road and Belmont Ridge Road. I will note that the blue segment here noted as the potentially modified segment, is currently constructed. In January of 2024,

[01:38:51] the Board of Supervisors initiated this Comprehensive Plan Amendment, or CPAM, process to consider the potential removal of the Gloucester Parkway extension from the countywide transportation plan. This study considers a combination of traffic analysis and forecast looking at the year 2040 with the travel demand model to determine impacts to the road network if this was removed, impacts to natural resources, as well as the access to

[01:39:24] Cochran Mill Road. The analyses, excuse me, the analyses considered three separate scenarios with this. The first scenario was considered an as-planned scenario, which would include full build of the 2019 CTP roadway network by the year 2040. Scenario one considered the removal of the full Gloucester Parkway extension which I will just note would include that western segment as well as the eastern segment. Scenario two considered only the removal of the eastern

[01:39:59] segment of the Gloucester Parkway extension. What we determined in this analysis was that the surrounding roadway networks would operate similarly if the road was removed compared to the 2019 full as-planned scenario that was studied. The scenarios also assumed some additional, some other roadway network improvements that are included in the 2019 CTP would be completed by 2040. These would include the widening of Route 7 to 8 lanes, Russell Branch Parkway extension,

[01:40:35] the extension of Gloucester Parkway, the widening of Sicklin Road to four lanes, and Cochran Mill Road realignment. In March of this year, staff brought this scenario to the board for your consideration, which was endorsed to move forward with the CPAM. And that is shown here, highlighted in gray on the map, which would consider only the removal of that eastern segment that crosses the Goose Creek. A transportation analysis was conducted with this, as I noted

[01:41:10] earlier and that report would suggest that there were not significant traffic impacts due to the removal of this potential segment of the Gloucester Parkway extension. I would also note that the removal of the bridge over the Goose Creek would minimize natural resource impacts. However, staff does recommend keeping the western segment of Gloucester Parkway extension between Cochran Mill Road and Cross Trail Boulevard to provide access a public comment

[01:41:44] meeting was held in April of this year comments were collected online through mid-May we did receive four comments three in support of the item and one in opposition I will note that the one in opposition suggested the opposition was based on the fact that they felt a need for an additional east-west connection between Cross Trail Boulevard and Belmont Ridge Road south of Route 7. This application was submitted to other referral agencies within the county as well as the Virginia Department of Transportation and the town of Leesburg. VDOT and the town of Leesburg

[01:42:18] specified that they could support the item given that or only if the other roadway capacity improvements remained in the 2019 CTP. This was brought to the Planning Commission for their consideration in May. The Planning Commission forwarded this CPAM item to the board with a recommendation of approval, and staff can also support a recommendation of approval, or can support approval of this CPAM item. This concludes my presentation. We're happy to answer any questions you may have. Okay, colleagues, if you have questions, please turn your light on. I will

[01:42:56] go to Vice Chair Turner first. Thank you, Madam Chair. Thank you, staff, very much. I appreciate this um the the only downside that i can see in this application and and i agree with staff that i don't consider this to be especially significant is the degradation if we do this to riverside parkway which drops from a d to an e can you talk now at the same time i'll note in that same chart it raises a sickle and road performance from a d to a c um i don't consider that significant either

[01:43:33] and as staff notes in the item, at \$7.8 million per lane mile, the \$28 million savings from not building this extension doesn't include the savings from not having to build another bridge across Goose Creek, not to mention the damage to Goose Creek. So I'm pretty comfortable. This is a very good move. But can you speak specifically to the degradation on Riverside from a D to an E and why you don't consider that to be significant thank you um vice chair turner what i would note

[01:44:08] is that the increase in volume on riverside parkway without this portion of gloucester parkway while it did increase and basically reduce the operation from a level of service d to an e those increases are minimal you're pretty close with the full build-out of the 2040 network to that level of service e anyway and this just pushes it slightly beyond that point to a level of service e okay that's that's pretty much what i thought i just wanted to make sure we

[01:44:42] had that on the record um madam chair that's all i have okay thank you uh vice chair turner supervisor umstead uh thank thank you madam chair i i support the staff solution uh having had multiple discussions with residents of kincaid forest they do not want uh gloucester parkway coming right up to um kincaid boulevard all the way from ashburn so that has always been their major concern that they would get a whole influx

[01:45:21] of additional traffic coming in from the east and going back east. I would probably prefer a solution without the western segment included, but I think eliminating the eastern segment is probably gonna satisfy most of my constituents' concerns, and i do appreciate the aspect of preventing another creek crossing over goose creek

[01:45:53] so i'm happy to support this and i thank vice chair turner for bringing this forward some time ago thank you supervisor glass thank you chair briskman so if we approve the the removal of Gloucester Parkway. An approved data center can be built in the right-of-way area. Would that data center be larger than if we do not remove Gloucester Parkway from the CTP? No supervisor Glass, the current approval is for a little

[01:46:30] bit more than 1.3 million square feet of data center. The size of the square footage allowed does not change. The removal of this right-of-way would allow them to reconfigure to what they consider a better layout on the site, but does not increase the density the intensity of the use itself okay thank you supervisor to crony thank you chair bressman can you explain the potentially modified segment so i see cochran mill road is two lanes it'll be um brought up to vdot standards what what is i mean we're going

[01:47:06] to do two lanes to four lanes what is this modified segment the potentially modified segment that's shown here in blue that is the piece that is currently constructed it is built right now as a four-lane roadway it's already it is it tapers back down to two lanes where it meets cochran mill road on either side but you'll note in the ctp cochran mill road is identified as a two-lane road and so that would be studied at a future date with the ctp update okay yeah and i'm happy to support this um thank you vice chair turner for bringing this forward i do think it's um

[01:47:43] environmentally much better to only have one bridge crossing on the goose creek thank you thank you uh supervisor saints thank you chair um you're proposing well i shouldn't say well let me ask this way if we were to remove this segment and then we have some of those other things that we we need to possibly accelerate down the road, Route 7, Russell Branch, Sickland Road, Cochraner Mill. Will any other projects be delayed, removed, moved to the bottom of the list, or anything of

[01:48:18] that nature going on? We will consider the CTP when we build the CIP. These projects are not in the CIP at this point, but we will give you a recommendation when it's time for you to build future CIPs. Okay because my only concern is just to make sure we're not moving you know some projects ahead of others that should be. This is not going to impact the current CIP in any negative way. Okay very good thank you. Thank you um how okay if you could you know you've got the map how

[01:48:58] far west is the eight lanes of route seven supposed to go? So the widening of route seven would extend And between, oh, I did write it down, between the Leesburg Bypass and then go out to the Algonquin Parkway, just past Route 28.

[01:49:19] From the Leesburg Bypass to just past 28, it'll go to eight lanes. Okay. I just want to, I do have some of the same concerns that Supervisor Saines just brought up and that I did bring up in our conversation earlier this week. I'm a little uneasy that parts of the item said that Russell Branch, Riverside Parkway, Sicklin, I believe, are going

[01:49:55] to bear the burden of the traffic going east-west because they won't have the Gloucester. So how do we ensure and i know that i know that it's okay it's going to be okay if everything's built out to the 2040 envision but i guess what what i'm worried about is how do we ensure that some projects aren't bumped down lower in priority um because route seven has to go to eight lanes now

[01:50:31] and we might need to do it faster because i know in other parts of the county we have some road projects that have been really waiting to happen i think it's important um on slide five it says surrounding roadways operates operates similarly with that with and without the extension i think that's an important note um that that being said we should be able to continue with the priorities

[01:51:06] we have for investment okay and then in time we can consider adding other requirements as a later priority okay okay i'm not gonna follow my sword over it i just wanted to express my concern because i feel as if closing that east-west route um burdens some of the east-west routes that are already in existence but um i'm not like i said i'm not going to follow my sword over it i think it's a good idea to to you know limit our impact on the environment as much as we can and hopefully

[01:51:43] we will be working on things like bus rapid transit on Route 7 and other things like that to alleviate the cars on the road. I think that's all the questions. We don't have a second presentation, right, because we're all together here. So I will go to Vice Chair Turner for a motion.

[01:52:01] Thank you, Madam Chair. I hadn't thought about this, but it sounds like I could probably suspend the rules and approve this right now and free up some space on the October 7th meeting but i haven't talked to you about it so i'll respect your wishes if you'd still like to just move it to the october 7th meeting do you have a preference you're gonna make me decide no not at all i i would like to suspend the rules and approve it now but if you have objections go ahead go ahead and make a motion okay thank you i move that the board of supervisors suspend the

[01:52:34] rules second madam you need to do the public hearing oh thank you uh are there any members of the sorry we will we will table that motion for momentarily is there anyone from the public wishing to speak on this item but this is a public hearing anyone on the remote no thank thank you mr galindo okay i'll call that public hearing closed we'll go back to our motion that was made by supervisor turner and seconded by supervisor umstead and that is a motion to suspend the rules

[01:53:10] uh supervisor uh elmsted seconded the motion i think we have an opening on that no no no discussion okay there is discussion on suspension of the rule yes i was right okay supervisor turner do you vice chair turner do you have an opening i have no opening thank you any other comments on the motion to suspend yeah exactly um okay all in favor please say aye aye any opposed that motion

[01:53:44] carries 9-0. I will abstain. I'm sorry, that motion will pass 8-0-1 with Chair Randall in abstention. Supervisor Vice Chair Turner, would you like to make a motion? Thank you, Madam Chair. I move that the Board of Supervisors approve CPAM 2024-0006 Gloucester Parkway as presented in attachment 1 to the September 10th, 2025 Board of Supervisors public hearing staff report. Second.

[01:54:11] That motion was made and seconded by Supervisor Umstead. Do you have an opening, Vice Chair Turner? I have no opening. Thank you. Do we have any other comments on the dais? We do not. I am just going to abstain from this motion, and not because I'm hard over against this.

[01:54:31] I'm just a little bit uncomfortable, and I will just abstain. All those in favor, please say aye. Aye. Any opposed? Any abstentions? That motion will pass -- that's what I thought -- that motion will pass 702 with Supervisor Briskman and Chair Randall abstaining.

[01:54:52] Thank you, everybody. With no other business, I will call this public hearing adjourned. Thank you.



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